



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

July 01, 2022

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 20599
(SECOND REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation of certain marine signal devices, collected from recreational vessels, for disposal. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.56(b) in that explosives need not be tested, classed, and approved, and § 172.320 in that each package containing a Class 1 material need not be marked with the EX number.
5. BASIS: This special permit is based on the application of County of Orange dated May 6, 2022, submitted in accordance with § 107.105 and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identi- fication Number	Packing Group
Articles, pyrotechnic <i>for technical purposes*</i>	1.1G	UN0428	N/A

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Articles, pyrotechnic <i>for technical purposes</i> **	1.3G	UN0430	N/A

*Packaging described in paragraph 7.e.(1) is authorized.

**Packaging described in paragraph 7.e.(2) is authorized.

7. SAFETY CONTROL MEASURES:

a. Only waste marine signal devices collected from recreational vessels are authorized under this special permit. Devices intended for commercial or military vessels or with known classifications of Division 1.1 or 1.2 are not authorized.

b. Waste marine signal devices must meet one of the following proper shipping name descriptions: Cartridges, signal; Flares, aerial; Flares, surface; Signal device, hand; Signals, smoke; or Signals, distress, smoke.

c. The weight of each waste marine signal device must not exceed 5 kilograms.

d. Any article that has its own means of ignition such as a striker mechanism or pull cord shall be protected from accidental actuation either by its original packaging and/or seal or the striker mechanism or end cap shall be secured in place with vinyl tape (such as electricians tape).

e. PACKAGING:

(1) Damaged marine signal devices must be classed as UN0428, 1.1G, and must be packaged as follows: Inner Packaging are plastic receptacles each containing not more than 10 kilograms of waste marine signal devices. The signal devices are submerged in water containing non-flammable antifreeze as needed to prevent freezing and sufficient to cover all articles. The inner packagings are sealed to be liquid-tight. Outer Packaging must be UN 1A steel or UN 1H plastic drum.

(2) Articles which have been inspected to assure they are intact and have no visible signs of damage may be classed as UN0430, 1.3G, and must be packaged in accordance with § 173.62, Packaging Instruction 135. The gross weight of pyrotechnic articles in an outer package shall not exceed 25 kilograms.

f. OPERATIONAL CONTROLS:

- (1) Transportation is limited to shipments to waste disposal facilities. No further transportation is authorized.
- (2) When operating under the direction of State, local, or tribal government officials, persons under the direction of those government officials may prepare shipments under the terms of this special permit.

8. SPECIAL PROVISIONS:

- a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.
- b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

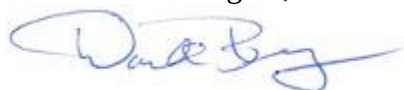
No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005),

amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Andrea Smith/NICKS